

If a testator by will devises to several persons upon trust, and nominates them his *trustees and executors*, and then by codicil revokes the appointment of one of them as *executor*, and substitutes another person as *executor* in his place, such revocation and new appointment extends only to the *executorship*, and does not by implication affect the *trusteeship* (*g*).

Legal estate curtailed from the nature of the trust. — *Secondly*, we proceed to illustrate the rule, that the legal estate limited to the trustee shall not be greater than is required by the trust.

[*216] *1. If a freehold estate be devised to A. and his heirs upon trust to *permit* B. to receive the rents during his life, and on his death to *convey* to C. in fee; here, as during the life of B. the trustees are to be merely passive, but after his death are to do an act, the legal estate for the life of B. is vested in B., and the remainder only in the trustee (*a*). On the other hand, if an estate be devised to A. and his heirs in trust, to *pay* the rents to B. for his life, and on his death, the testator devises the estate to C. in fee, here the legal estate for the life of B. is in the trustee, and the legal estate of the remainder is vested in C. (*b*). So where a *copyhold* was devised to A. and his heirs, upon trust for the separate use of B. a *feme covert* during her life, and after her decease the testatrix devised the same to such use as B. should appoint, and in default of appointment to the right heirs of B., it was thought by Judge Heath that the trustee took a base fee determinable by an executory devise over on the death of the *feme covert*, and by Judge Chambre that the

(*g*) *Worley v. Worley*, 18 Beav. 58; *Graham v. Graham*, 16 Beav. 550; *Cartwright v. Shephard*, 17 Beav. 301; *Barrett v. Wilkins*, 5 Jur. N. S. 687.

(*a*) *Doe v. Bolton*, 11 Ad. & Ell. 188; *Adams v. Adams*, 6 Q. B. 860.

(*b*) *Adams v. Adams*, 6 Q. B. 860; *Cooke v. Blake*, 1 Exch. 220; *Jones v. Lord Say & Sele*, 8 Vin. Ab. 262; *Doe v. Simpson*, 5 East, 171, *per* Lord Ellenborough; *Robinson v. Grey*, 9 East, 1; *Doe v. Ironmonger*, 3 East, 533; *Warter v. Hutchison*, 5 Moore,

143; S. C. 1 B. & C. 721; and see *Nash v. Coates*, 3 B. & Ad. 839; *Ward v. Burbury*, 18 Beav. 190; *Doe v. Cafe*, 7 Exch. 675. Note, *Harton v. Harton*, 7 T. R. 652, can scarcely be reconciled with principle, and seems to have been disapproved by Lord Eldon in *Hawkins v. Luscombe*, 2 Sw. 391; but Sir J. Wigram considered himself bound by it in *Brown v. White-way*, 8 Hare, 145, and the Court of Q. B. recognised its authority, at least to a partial extent, in *Toller v. Attwood*, 15 Q. B. 951.